

24STCP03506 24STCP03506

County: los-angeles

Division: Civil Law and Motion

Department: 834

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Case Number: 24STCP03506 Hearing Date: June 23, 2026 Dept: 834

Superior Court of California

County of Los Angeles

Department 834

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SILVANA STEPHANIE APARICIO,

Petitioner(s),

vs.

MICHAEL

D. WATROBSKI, et al.,

Respondent(s).

Case No.:

24STCP03506

Hearing Date:

June 23, 2026

[TENTATIVE]

ORDER RE: MOTION AUGMENT THE ADMINISTRATIVE RECORD

Petitioner Silvana Stephanie Aparicio ("Petitioner") seeks to

augment the administrative record.[1]

The motion is denied.

I.

Background

1.

Factual Allegations

Petitioner's petition for writ of mandate alleges, in

pertinent part, the following.

On July 9, 2019, respondent Ashley Estis ("Estis") submitted

a Detention Report ("Report"). (Pet. at 4:4-5.) [2] The

Report included false information, including in part that during an incident on

June 17, 2019, Petitioner entered the home of her parents Alice Wong Aparicio

("Alice") and Luis A. Aparicio ("Luis") and began throwing objects around. (Pet.

at 4:4-25, 4:11-13.)

The Department of Children and Family Services ("DCFS"),

Santa Fe Springs, filed a petition to remove Petitioner's son, Alex Aparicio

("Alex"), from Alice and Luis's home after the June 17, 2019 incident. (Pet. at

2:16-17.) On July 18, 2019, the Juvenile Dependency Court issued a Do Not Remove Order. (Pet. at 2:1-20.) The Dependency Court further ordered Family Reunification Services on September 12, 2019. (Pet. at 2:21-22.) The case was expunged after Petitioner completed 52 weeks of parenting classes. (Pet. at 2:23-26.)

Petitioner received a letter from DCFS dated July 3, 2024 (“CACI Notification”), notifying her that the DCFS had completed an investigation and sustained an allegation against Petitioner of child abuse or severe neglect. (Pet. at 3:7.) Petitioner requested a grievance hearing on July 25, 2024 by certified mail. (Pet. at 2:7-8.)

DCFS responded with a Letter of Denial dated August 1, 2024. (Pet. at 2:8-9.) In the Letter of Denial, the DCFS said it would not grant a grievance hearing because the matter had already been adjudicated in Juvenile Dependency Court. (Pet. at 2:12-14.)

Petitioner sent respondent Michael D. Watrobski (“Watrobski”) notarized letters from Alice and Luis dated September 28, 2024 contesting that any abuse or neglect occurred. (Pet. at 3:2-6.) Alice sent the letters again in October 2024. (Pet. at 3:18-20.) Neither correspondence received a reply. (Pet. at 3:16-17, 3:20.) Alice also called Watrobski and left a voice mail, receiving no response. (Pet. at 3:21-23.)

Procedural History

On October 29, 2024, Petitioner filed this writ action

against respondents Watrobski, Leonard Aguilar ("Aguilar"), and Estis

(collectively, "Respondents"). On December 5, 2024, Watrobski filed his answer

to the petition. On March 6, 2025, Aguilar and Estis filed their answer to the

petition.

On April 17, 2025, the Court determined that Alice and Luis,

as non-attorneys, cannot represent Petitioner. The Court ordered that Alice may

sit with Petitioner at counsel table for emotional support only and is not

permitted to make legal arguments or speak on behalf of Petitioner.

On June 26, 2025, the Court granted Petitioner's formal June

17, 2025 request for self-representation.

On November 6, 2025, Respondents filed a Notice of Lodging of

Confidential Administrative record, representing that the sealed 137-page

administrative record was lodged with the Court. On November 12, 2025,

Respondents filed Notice of Withdrawal of Notice of Lodging of Confidential

Administrative Record as no records were lodged with the Court.

On January 15, 2026, the Court ordered that Petitioner must

file any motion to augment the record by April 20, 2026. On April 27, 2026, the

Court vacated the hearing on a motion to augment scheduled May 12, 2026,

because Petitioner had not yet filed any motion to augment.

Later that day, Petitioner filed the instant motion to

augment.

On May 12, 2026, at a Trial Setting Conference, Petitioner

was admonished re proper service and notice, including as to her Motion to

Augment.

On June 3, 2026, Respondents filed their opposition. On June

11, 2026, Petitioner filed her reply.

II.

Discussion

“The general rule is that a hearing on a writ of

administrative mandamus is conducted solely on the record of the proceeding

before the administrative agency.” (Toyota of Visalia v. New Motor Vehicle

Bd. (1987) 188 Cal.App.3d 872, 881.) The court can only admit additional

evidence where the party seeking its inclusion shows (1) the evidence could not

have been presented to the agency in the first instance in the exercise of

reasonable diligence or (2) was improperly excluded. (CCP §1094.5(e); Western

States Petroleum Assn. v. Superior Court (1995) 9 Cal.4th 559, 578; Eureka

Citizens for Responsible Govt. v. City of Eureka (2007) 147 Cal.App.4th

357, 366.)

While Petitioner filed the motion beyond the timeline

provided by the Court, the Court nevertheless exercises its discretion to consider it.

The Court denies Petitioner's motion on the basis that (1)

Petitioner has not provided the legal authority supporting her request to augment the record to include the documents she seeks to add to the administrative record, and (2) Petitioner has not clearly identified, or provided the Court, the exhibits she seeks to add. (See generally Mot.)

Petitioner also failed to file a notice, a memorandum of points and authorities, and supporting evidence. Therefore, she has not complied with California Rules of Court, rules 3.1112.

For the same reasons, the Court cannot determine whether the documents Petitioner seeks to add to the record could not have been presented to the agency or were improperly excluded by the agency.

Accordingly, the motion is denied.

III.

Conclusion

The motion to augment the administrative record is DENIED.

Date: June 23, 2026

HON. TIANA J. MURILLO

PLEASE TAKE NOTICE:

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Parties

are encouraged to meet and confer after reading this tentative ruling to see if

they can reach an agreement.

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If

a party intends to submit on this tentative ruling, the party may send an email

to the court at with the Subject line

“SUBMIT” followed by the case number. The body of the email must include the

hearing date and time, counsel’s contact information, and the identity of the

party submitting.

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Unless

all parties submit by email to this tentative ruling, the parties should

arrange to appear remotely (encouraged) or in person for oral argument. You

should assume that others may appear at the hearing to argue.

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If

the parties neither submit nor appear at hearing, the court may take the matter

off calendar or adopt the tentative ruling as the order of the court. After the court has issued a tentative ruling, the court may prohibit the withdrawal of the matter without leave.

[1]

Petitioner also requests that the Court allow Petitioner's parents speak on her behalf if necessary. (Mot. at 2.) As the court ruled on April 17, 2025, they may not. Under California law, no person shall practice law, including by representing another person, without an active California State Bar License. (Bus. & Prof. Code §6125; *Birbrower, Montalbano, Condon & Frank v. Superior Court* (1998) 17 Cal.4th 119, 142.) Neither Alice nor Luis is licensed to practice law within the State of California. The law makes the unauthorized practice of law a crime. (Bus. & Prof. Code §6126.) It is not a discretionary procedural requirement which the court can waive.

[2] The allegations of the Petition are

formatted in sections (minuscule letters), subsections (minuscule Roman numerals), and subsubsections (asterisk bullets). For ease of reference, citations to the Petition will use page and line numbers.